



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 18, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21163
(SECOND REVISION)

EXPIRATION DATE: 2027-07-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: United Initiators, Inc.
Elyria, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of organic peroxides in cargo tank motor vehicles that utilize alternative pressure relief devices (PRD), specifically four – 12-inch diameter pressure vents with rupture disks in lieu of the prescribed reclosing PRD. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.345-10(b)(1).
5. BASIS: This special permit is based on the application of United Initiators, Inc. dated August 14, 2023, and submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Organic peroxide type F, liquid	5.2	UN3109	N/A
Organic peroxide type F, liquid, temperature controlled	5.2	UN3119	N/A

Organic peroxides transported under this special permit must be approved for transportation in bulk quantities in accordance with § 173.128(d) or listed in the § 173.225(g) organic peroxide portable tank table.

7. SAFETY CONTROL MEASURES:a. PACKAGING:

- (1) Cargo tank motor vehicle equipped with alternative pressure relief devices, specifically four – 12-inch diameter pressure vents with rupture disks, as described in the application. Drawings must be on file with the Office of Hazardous Materials Safety (OHMS).
- (2) Only cargo tank motor vehicles with serial and tank numbers on file with the OHMS are authorized.

b. OPERATIONAL CONTROLS:

- (1) Each cargo tank motor vehicle must be loaded and unloaded by United Initiators' personnel or subcontracted personnel or client personnel that are trained in the handling of the lading and the details of the special permit.
- (2) Drivers must be instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire or accident.
- (3) Transportation must be by private carrier only.
- (4) The pressure relief devices must operate at pressures determined according to both the properties of the hazardous material and the construction characteristics of the cargo tank motor vehicle, for each material that is transported. Materials for which the vent size requirement exceeds the venting capability of the cargo tank motor vehicle may not be transported under this special permit.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. Each cargo tank motor vehicle must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-SP 21163".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LM/AD/TG